

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Wajeeh Baker and Javier Rodriguez,

:

:

Index Number:
Date Purchased:
Date Filed:

:

Plaintiffs

:

SUMMONS

-against-

:

City of New York, New York City Police Department,
Police Officer Johnny Diaz, Shield 31661 of the 34
Precinct, Police Officer Wilfredo Burgos, Tax #953710,
Police Officer Nicholas Kane, Tax #948057 and New York
City Police Officers John Doe,

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Plaintiff Baker's residence is:
1496 Longfellow Avenue
Bronx, NY 10460

Defendants

:

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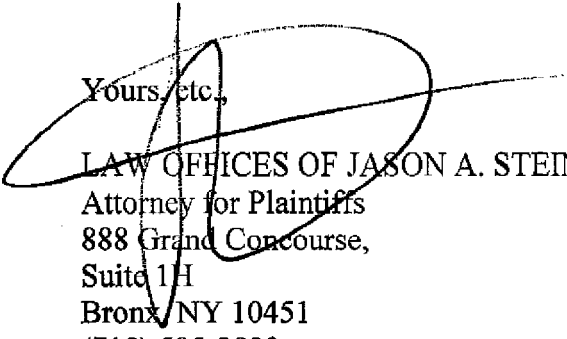
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in New York County.

Dated: March 1, 2019
New York, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse,
Suite 111
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Johnny Diaz, Shield 31661 of the 34 Precinct

Police Officer Wilfredo Burgos, Tax #953710

Police Officer Nicholas Kane, Tax #948057

New York City Police Officers John Doe

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Police Officer Johnny Diaz, Shield 31661 of the 34	:
Precinct, Police Officer Wilfredo Burgos, Tax #953710,	:
Police Officer Nicholas Kane, Tax #948057 and New York	:
City Police Officers John Doe,	:
	:
Defendants.	:
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VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Wajeeh Baker, (hereinafter referred to as "BAKER") resides in Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Javier Rodriguez, (hereinafter referred to as "RODRIGUEZ") resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned, Police Officer Johnny Diaz, Shield 31661 of the 34 Precinct (hereinafter referred to as "DIAZ") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Police Officer Wilfredo Burgos, Tax #953710 (hereinafter referred to as "BURGOS") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Police Officer Nicholas Kane, Tax #948057 (hereinafter referred to as "KANE") was employed by the New York City Police Department.

6. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the police officers involved in the arrest of Plaintiffs (hereinafter referred to as "DOES") were employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

9. On or before about April 19, 2018 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claims against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

10. On or about November 21, 2018 a hearing required by Municipal Law 50-H was conducted as to both Plaintiffs. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

11. That on or about August 26, 2017 at approximately 4:00AM in the vicinity of 10th Avenue and 202 Street, Plaintiffs were leaving a nightclub and attempting to hail a taxi when DIAZ, BURGOS, KANE and DOES stopped, handcuffed and arrested them.

12. That at no time had BAKER or RODRIGUEZ engaged in any unlawful or criminal activity.
13. That at no time had BAKER or RODRIGUEZ possessed any knives or scalpels.
14. That at no time did BAKER or RODRIGUEZ use or attempt to use a knife or scalpel against another person.
15. That after Plaintiffs were arrested they were both taken to the 34 precinct.
16. That when Plaintiffs arrived at the 34 precinct they were each placed into a cell with other males for several hours.
17. That after being held in cells for several hours in the 34 precinct, each of the Plaintiffs were subjected to a strip search and that nothing of an unlawful or illegal nature was recovered.
18. That after being held in cells for several hours in the 34 precinct, Plaintiffs were removed to New York County Central Booking located at 100 Centre Street, New York, New York.
19. That while at Bronx Central Booking, Plaintiffs were held in a cell with other males for several hours.
20. That while at Bronx Central Booking, Plaintiffs were subjected to harassment from the other male prisoners.
21. That on about August 26, 2018, BAKER was arraigned in New York County Criminal Court on docket 2017BX045396 charging him with Attempted Assault in the Second Degree and Criminal Possession of a Weapon in the Fourth Degree.
22. That on about August 26, 2018, RODRIGUEZ was arraigned in Bronx County Criminal Court on docket 2017BX045397 charging him with Attempted Assault in the Second Degree and Criminal Possession of a Weapon in the Fourth Degree.

23. That at the time of the arraignment bail was set for each Plaintiff and they were each remanded to the custody of the New York City Department of Corrections.

24. That BAKER remained in the custody of the New York City Department of Corrections from August 26, 2018 until August 29, 2017 whereupon he made bail.

25. That RODRIGUEZ remained in the custody of the New York City Department of Corrections from August 26, 2018 until August 29, 2017 whereupon he made bail.

26. That BAKER made several court appearances between August 26, 2018 and March 7, 2018 whereupon the case was dismissed upon application of the New York County District attorney.

27. That BAKER made several court appearances between August 26, 2018 and February 28, 2018 whereupon the case was dismissed upon application of the New York County District attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. That Defendants acted with actual malice toward BAKER and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

30. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

31. That as a result of the actions by Defendants was traumatized and fears for his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.

32. That as a result of the Defendants' actions, BAKER has been unable to sleep.
33. That as a result of the Defendants' actions, BAKER missed several days from work.
34. That as a result of the Defendants' actions BAKER sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.
36. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of BAKER as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.
37. Defendants having no lawful authority to arrest BAKER did, nevertheless, unlawfully arrest BAKER with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff BAKER is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.
39. Defendants conspired to violate BAKER's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff BAKER is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff BAKER was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused BAKER to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff BAKER by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff BAKER. BAKER is thus entitled to compensatory and exemplary damages.

42. That during the pendency of the case DIAZ, BURGOS, KANE and DOES continued to cooperate with the prosecution by claiming that BAKER possessed a scalpel and used said scalpel unlawfully against another person when BAKER had not in fact possessed any scalpel or used a scalpel against anyone.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. At all times pertinent hereto, DIAZ, BURGOS, KANE and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

45. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that DIAZ, BURGOS, KANE and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. The City of New York and New York City Police Department's failure to provide adequate training and supervision to DIAZ, BURGOS, KANE and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff BAKER. Plaintiff BAKER is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

48. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 47, as if more fully stated herein at length.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff BAKER.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff BAKER.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

51. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42 as if more fully stated herein at length.

52. That Defendants acted with actual malice toward RODRIGUEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of RODRIGUEZ.

53. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

54. That as a result of the actions by Defendants, RODRIGUEZ was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

55. That as a result of the Defendants' actions, RODRIGUEZ has been unable to sleep.

56. That as a result of the Defendants' actions, RODRIGUEZ was forced to miss several days from work.

57. That as a result of the Defendants' actions RODRIGUEZ sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff RODRIGUEZ as guaranteed by the Fourth, Fifth

and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

60. Defendants, having no lawful authority to arrest RODRIGUEZ, did, nevertheless, unlawfully arrest RODRIGUEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff RODRIGUEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

61. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Defendants conspired to violate RODRIGUEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff RODRIGUEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff RODRIGUEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of RODRIGUEZ by Defendants was unjustified and done with actual malice

and wanton indifference to and deliberate disregard for human life and the rights of RODRIGUEZ. Plaintiff RODRIGUEZ is thus entitled to compensatory and exemplary damages.

65. That during the pendency of the case DIAZ, BURGOS, KANE and DOES continued to cooperate with the prosecution by claiming that RODRIGUEZ possessed a scalpel and used said scalpel unlawfully against another person when RODRIGUEZ had not in fact possessed any scalpel or used a scalpel against anyone.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. At all times pertinent hereto DIAZ, BURGOS, KANE and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

68. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that DIAZ, BURGOS, KANE and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

69. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. The City of New York and New York City Police Department's failure to provide adequate training and supervision to DIAZ, BURGOS, KANE and DOES constitutes a willful

and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff RODRIGUEZ. Plaintiff RODRIGUEZ is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

71. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70, as if more fully stated herein at length.

72. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff RODRIGUEZ.

73. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff RODRIGUEZ.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

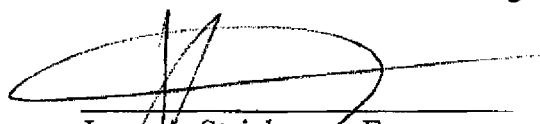
On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

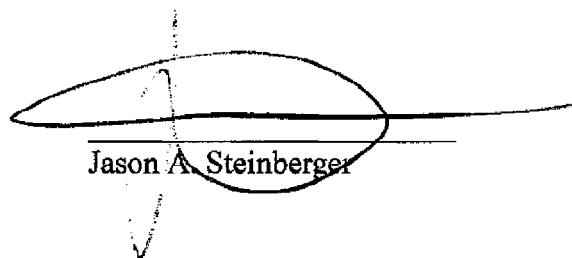


Jason A. Steinberger, Esq.
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(718) 585-2833

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 3, 2018



Jason A. Steinberger